

**MINUTES OF THE MEETING OF THE
MANHEIM TOWNSHIP BOARD OF COMMISSIONERS
MONDAY, JANUARY 22, 2018 - 6:00 P.M.**

Roll Call: The meeting of the Manheim Township Board of Commissioners was held at 6:00 p.m., Monday, January 22, 2018 in the Municipal Building. Members present were: Commissioners DiMeo, Heck, O'Brien, Kling and Mecum, and Secretary Sean Molchany. President Kling led all in the pledge of allegiance to the flag of the United States of America.

Approval of Minutes: Commissioner Mecum moved to approve the minutes of the January 8, 2018 regular meeting. Seconded by Ms. DiMeo. President Kling asked if there were any questions or comments from the Board or the audience. There were none. Motion carried unanimously.

Payment of Bills: Commissioner DiMeo moved to approve the January 22, 2018 disbursements and to fund the appropriate accounts for the disbursements. Commissioner DiMeo presented bills for the period ending January 22, 2018 from the General Fund in the amount of \$571,304.24, from the Golf Course Fund in the amount of \$25,803.25, from the Capital Reserve Fund in the amount of \$70,220.89, from the Parks Capital Fund in the amount of \$1,560.72, from the Highway Aid Fund in the amount of \$70,221.94, and from the Escrow Fund in the amount of \$60,370.38 for a Grand Total of \$799,481.42. Commissioner DiMeo explained the large payments this month were for health, dental and vision insurance, purchasing card payment, Township engineering, road salt purchases, a return of escrow, vehicle repairs, website redesign and third party code inspections. Commissioner DiMeo further explained the Township is trying to put as many expenses as they can on the Master Card to control spending, there are less checks being cut and the Township gets between 1% to 2% cash back from purchases. Last year the Township received over \$20,000 in cash back. Seconded by Mr. Heck. President Kling asked if there were any questions or comments from the Board or the audience. There were none. Motion carried unanimously.

Department Reports/Announcements:

Commissioner Mecum stated it is his pleasure to once again, on behalf of the Board of Commissioners, present commendations to two Eagle Scouts on January 29th.

President Kling announced the Commissioners held an executive session prior to this meeting to discuss a contract issue. He also shared that two weeks ago Vice President DiMeo and he had lunch with the new mayor of Lancaster to discuss improving relationships between the Township and City. Mayor Sorace believes the relationship between the two jurisdiction's police, fire and public works departments is excellent. Both the Commissioners and the Mayor expressed a desire to continue to improve communication regarding common issues moving forward.

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Phil Mellott, Director of Public Works presented the monthly Public Works Department report. Highlights between December 10, 2017 and January 6, 2018 include the completion of the leaf collection in December. They completed the three scheduled collections and one additional round as well. The Public Works Department covered four winter storm events. They applied a total of 972 tons of salt and they had 1,204 total hours committed to these events. This equates to roughly 25% of the total hours worked during the period.

They are continuing work on the Destination Playground restroom as weather permits. The restroom is currently under roof and weatherproofed. The plumbing is roughed in and three sides of the structure is sided. Most of the electric is roughed in as well.

The general discipline summary shows that 77% of the time was spent on Public Works projects, 13% was spent on Parks projects and 10% of the time was spent on facilities' maintenance.

Mr. Mellott then reviewed the 2018 Capital Budget Assignment matrix which lists the budget item, budgeted amount/account, estimated completion date, responsible party and percentage of completion.

Commissioner DiMeo complimented the Public Works Department on their fine job of clearing the roads during the storm events.

Public Hearings/Presentations/Appointments:

Resolution 2018 – 26 Appointing a Member to the Fire Council

Commissioner O'Brien moved to adopt Resolution 2018 – 26 appointing Stephanie A. Rudzinski to the Fire Council of Manheim Township until the first Monday of January 2022. Seconded by Ms. DiMeo. President Kling asked if there were any questions or comments from the Board or the audience. There were none. Motion carried unanimously. President Kling issued the oath of office.

Old Business: There was no old business this evening.

New Business:

Consent Agenda: Commissioner Heck moved to approve the following items in the Consent Agenda which consisted of two extensions of time. Seconded by Ms. DiMeo. President Kling asked if there were any questions or comments from the Board or the audience. There were no questions. Motion carried unanimously.

Lancaster Airport Hanger Addition – Preliminary/Final Land Development Plan, 500 Airport Road, Zoned I-3, D-A Overlay, Extension of Time

Approved the time extension request for Lancaster Airport Hangar Addition Preliminary/Final Land Development Plan for action by the Manheim Township Commissioners. The request will extend the time period in which to act on the plan to March 1, 2018.

Jones Brothers Holding – Preliminary/Final Lot Add-On and Stormwater Management Plan, 1361 Manheim Pike & 201 Service Road, Zoned B-4 & D-R Overlay, Extension of Time.

Moved to approve the time extension request for Jones Brothers Holding Preliminary/Final Lot Add-On and Stormwater Management Plan for action by the Manheim Township Commissioners. The request will extend the time period in which to act on the plan to March 15, 2018.

Resolutions:

Resolution 2018 – 27: Approving East Lampeter Township as a Member of the Central Lancaster County Council of Government

Commissioner Mecum moved to adopt Resolution 2018 – 27 appointing East Lampeter Township as a member of the Central Lancaster County Council of Government and authorize the proper Township officials to sign the Central Lancaster County Council of Governments Agreement. Seconded by Ms. DiMeo. President Kling asked if there were any questions or comments from the Board or the audience. Commissioner Mecum named the other members of the COG and expressed a desire to see the City of Lancaster become a member as well. There were no further questions or comments. Motion carried unanimously.

Resolution 2018 – 28: Authorizing Temporary Installation of Banners Across Lititz Pike at Stauffer Mansion

Commissioner DiMeo moved to adopt Resolution 2018 – 28 authorizing the temporary installation of banners across Lititz Pike at Stauffer Mansion. This would include the placement of banners to announce the Native Plant Sale on April 28th, the Landis Woods Art Show on September 29th, and the Junior League Run4Luck on March 17th. Seconded by Mr. Mecum. President Kling asked if there were any questions or comments from the Board or the audience. There were no questions. Motion carried unanimously.

Ordinances: There were no ordinances this evening.

Motions/Decisions:

Motion: Agreement Between the Manheim Township Police Benevolent Association and Manheim Township Board of Commissioners

Commissioner Heck moved to authorize the proper Township officials to sign the Manheim Township Police Benevolent Association Agreement covering salaries and other benefits for the calendar years 2017, 2018 and 2019. Just as a matter of background, Commissioner Heck shared that he and Commissioner Mecum, as well as Mr. Molchany and Ms. Stratchko have spent a great deal of time in the negotiating process. In 2016 the Association wanted this matter to go to arbitration. For most of 2017 the contract negotiations were in the hands of the arbitrators. Late in 2017 the arbitrators presented their resolution. The parties now have a completed contract for those years. One major item was salary increase for the officers. In 2017 they received a 2.5% raise, 2018 the percentage increase was 2.75% and in 2019 the increase will be 3.0%. The main benefit change was to bring the police health benefits more in line with the Township's health benefits and to allow the police to enroll in the high deductible plan already offered to the non-uniform employees. President Kling mentioned the contract has already been signed by the Police. Seconded by Ms. DiMeo. President Kling asked if there were any questions or comments from the Board or the audience. There were no questions. Motion carried unanimously.

Motion: Environmental Recovery Corporation – Preliminary/Final Lot Add-On Plan, 1116 and 1102 Manheim Pike, Zoned I-2

Commissioner O'Brien moved to approve the Environmental Recovery Corporation Preliminary/Final Lot Add-On Plan and the requested modifications. The approval is contingent upon the owner/applicant's written acceptance of the conditions outlined in the Township Review Letter, dated January 4, 2018 and subject to the submission of information meeting those conditions. Seconded by Mr. Mecum. President Kling asked if there were any questions or comments from the Board or the audience. There were no questions. Motion carried unanimously.

Motion: 1981 Landis Valley Road – Stormwater Management Plan, 1981 Landis Valley Road, Zoned R-2, Modification Requests

Commissioner Mecum moved to grant the following modifications in accordance with Section 801 of the Stormwater Management Ordinance of 2014: Section 402.4: Dewatering Time, Section 403.3.C: Inlet Location, Section 403.3.L: Pipe Size. Commissioner Mecum further moved to grant the modification of Section 802.6: Impact Fee Reduction, in accordance with Section 203 of the Subdivision/Land Development Ordinance of 1998. Seconded by Ms. DiMeo. This project only concerns one single family residence and the Township engineer, Jeff Shue, has no issues with the modifications. President Kling asked if there were any questions or

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comments from the Board or the audience. There were no questions. Motion carried unanimously.

Acknowledgments:

Kissel Hill Commons Planned Residential Development – Lot 286, Brentwood Drive, Chatham Way and Bayberry Place, Zoned R-2, Revised Tentative Plan

President Kling acknowledged receipt of the Revised Tentative Plan and Conditional Use Modification requests for the Kissel Hill Commons Planned Residential Development located on Lot 286 along Brentwood Drive, Chatham Way and Bayberry Place and authorized the scheduling of the public hearing for April 9, 2018 at 6:00 p.m. here at the Township offices.

Other Business/Deliberations:

Discussion of Reidenbaugh Tennis Court Recommendation

Margie Earnest, Director of Recreation and Park Planning, presented a proposal to the Commissioners concerning the resurfacing of the tennis courts at Reidenbaugh Elementary School. The courts are one of the school/park concept parks. The Manheim Township School District requested the Township to help offset the cost of repair. The School District received a quote for the work in the amount of \$12,867.00 to repair all the cracks and apply a three-coat color system, including the lines, over the courts. The Parks and Recreation Board investigated the legalities of this request. Stacey Morgan Brubaker, Township Solicitor, assured the Board under the First Class Township Code, it is legal for the Township and School District to share the cost of such a project. The Board therefore made a recommendation to the Commissioners to contribute \$6,433.50 towards this project. In addition, the Board is recommending the Township and School District enter into a contract to ensure the School District maintains these courts until the end of their useful life, estimated to be an additional five to ten years. The School Board has discussed this but has not yet voted.

President Kling expressed concern about making a commitment at this time without a set time before the courts can be removed and a firm quote on the cost. Commissioner DiMeo felt the Commissioners should move forward on this issue now. She stated she believes the Township has a good working relationship with the School District and since our residents use the facilities the Commissioners should support this project.

Commissioner Heck initiated a brief discussion regarding the possibility of the Township taking ownership of the tennis court exclusively. This possibility was discussed years ago. The School District decided against any such land swap in order to ensure the availability of land for future school building expansion. It was mentioned that since there are no other tennis courts at other elementary schools

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within the district and tennis is not a part of their current elementary school curriculum, the School District is not inclined to solely fund this project. There was further discussion of what conditions should be included in an agreement.

Commissioner DiMeo made a motion to pay for half of the Reidenbaugh tennis court resurface/repair project, once a written agreement is entered into between both parties. The Township will commit to reimburse the School District up to, but not to exceed \$6,433.50, (funded and paid in 2019), towards the cost of resurfacing/repairing the tennis courts. In return the School District will not only maintain the courts until the end of their useful life, but will also commit to allowing the Township use of the courts until a set date. Until that date the School District will not be able to remove the courts. Seconded by Mr. Mecum.

Sherry Rich, 319 East Oregon Road stated she and her friends use the tennis courts to play tennis on a regular basis. Over the years the number available tennis courts in Manheim Township open to the public has dwindled. It's hard to find a place for senior citizens to play tennis during the morning hours in the summer. Mrs. Rich respectfully requested the number of courts at Reidenbaugh be expanded from the existing two courts to three or four courts. An alternative would be a separate pickleball court to free up one of the existing tennis courts for tennis play. She further requested the lines for pickleball and tennis be more distinguishable on courts with shared usages. It's difficult to differentiate what lines are for what play on the existing courts. President Kling, on behalf of the Commissioners, thanked Mrs. Rich for her comments. He also suggested this might be something to consider for next year's budget.

There were no further comments. Motion carried unanimously.

Correspondence and Petitions: There were no correspondence or petitions this evening.

Public Comment: There was no public comment this evening.

Adjournment: There being no further business before the Commissioners, Commissioner DiMeo moved and Mr. Heck seconded that the meeting adjourn at 6:22 p.m., with all in favor.

Respectfully submitted,

Sean P. Molchany
Manager-Secretary